

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                  |                                                             |                               |                                                                                                                                                                                                                                  |
|--------------------------------------------------|-------------------------------------------------------------|-------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Investigator:<br>Arnav Madhiwalla                | Team:<br>Squad #03                                          | CCRB Case #:<br>202406182     | <input checked="" type="checkbox"/> Force <input type="checkbox"/> Discourt. <input type="checkbox"/> U.S.<br><input checked="" type="checkbox"/> Abuse <input type="checkbox"/> O.L. <input checked="" type="checkbox"/> Injury |
| Incident Date(s)<br>Thursday, 06/20/2024 5:40 PM | Location of Incident:<br>Stillwell Avenue and Bowery Street | 18 Mo. SOL<br>12/20/2025      | Precinct:<br>60                                                                                                                                                                                                                  |
| Date/Time CV Reported<br>Thu, 06/20/2024 9:28 PM | CV Reported At:<br>Precinct                                 | How CV Reported:<br>In-person | Date/Time Received at CCRB<br>Thu, 06/20/2024 9:28 PM                                                                                                                                                                            |

| Complainant/Victim | Type | Home Address |
|--------------------|------|--------------|
|                    |      |              |

| Subject Officer(s)       | Shield | TaxID  | Command       |
|--------------------------|--------|--------|---------------|
| 1. PO Aleksandr Chekalin | 17067  | 966501 | 060 CONEY ISL |

| Witness Officer(s)  | Shield No | Tax No | Cmd Name |
|---------------------|-----------|--------|----------|
| 1. PO Jared Cordero | 06948     | 974028 | 060 PCT  |

| Officer(s)                | Allegation                                                                                                | Inv. Div. Recommendation   |
|---------------------------|-----------------------------------------------------------------------------------------------------------|----------------------------|
| A . PO Aleksandr Chekalin | Abuse: Police Officer Aleksandr Chekalin stopped § 87(2)(b)                                               | A . Within NYPD Guidelines |
| B . PO Aleksandr Chekalin | Force: Police Officer Aleksandr Chekalin used physical force against § 87(2)(b)                           | B . Within NYPD Guidelines |
| C . PO Aleksandr Chekalin | Abuse: Police Officer Aleksandr Chekalin seized § 87(2)(b) property.                                      | C . Substantiated          |
| D . PO Aleksandr Chekalin | Abuse: Police Officer Aleksandr Chekalin failed to obtain language interpretation services for § 87(2)(b) | D . Unfounded              |
| E . PO Aleksandr Chekalin | Abuse: Police Officer Aleksandr Chekalin failed to provide § 87(2)(b) with a business card.               | E . Substantiated          |

### Case Summary

On June 20, 2024, § 87(2)(b) filed the following complaint in-person at the 60<sup>th</sup> Precinct stationhouse. It was received by the CCRB on the same day.

On June 20, 2024, at about 5:40 p.m., § 87(2)(b) was vending food at Stillwell Avenue and Bowery Street in Brooklyn. She was approached and stopped by PO Aleksandr Chekalin of the 60<sup>th</sup> Precinct (**Allegation A: Abuse of Authority, Within NYPD Guidelines**). PO Chekalin grabbed her arm to stop her (**Allegation B: Force, Within NYPD Guidelines**). He asked for her ID and confiscated her vending license (**Allegation C: Abuse of Authority, Substantiated**). § 87(2)(b) spoke Spanish and requested an interpreter, but PO Chekalin did not obtain one (**Allegation D: Abuse of Authority, Unfounded**). Upon leaving, he did not offer her a business card (**Allegation E: Abuse of Authority, Substantiated**).

Body-worn camera (BWC) footage was provided by the NYPD. [BR 1]

### Findings and Recommendations

**Allegation (A) Abuse of Authority: Police Officer Aleksandr Chekalin stopped § 87(2)(b)**

**Allegation (B) Force: Police Officer Aleksandr Chekalin used physical force against § 87(2)(b)**

**Allegation (C) Abuse of Authority: Police Officer Aleksandr Chekalin seized § 87(2)(b) property.**

**Allegation (D) Abuse of Authority: Police Officer Aleksandr Chekalin failed to obtain language interpretation services for § 87(2)(b)**

**Allegation (E) Abuse of Authority: Police Officer Aleksandr Chekalin failed to provide § 87(2)(b) with a business card.**

§ 87(2)(b) CCRB interview was conducted with a Spanish translator. § 87(2)(b) stated that she was selling food at Stillwell Avenue and Bowery Street. § 87(2)(b) had a food vendor license issued by the city. PO Chekalin approached her and asked her for ID and grabbed her left arm. § 87(2)(b) stated that she was not bruised or injured, but that her arm was red afterwards. She did not make movements before or during the grab. § 87(2)(b) provided her ID and PO Chekalin let go.

PO Chekalin said that it was not the ID he wanted. § 87(2)(b) did not have another ID. She provided her vending license. § 87(2)(b) does not speak English well and asked PO Chekalin for a translator. PO Chekalin did not reply. § 87(2)(b) then asked some women nearby, about three or four, to help translate. They asked PO Chekalin why he took § 87(2)(b) license. He did not respond and left with her license. PO Chekalin did not offer a business card or issue a summons. § 87(2)(b) went to the stationhouse at a later time and got her license back. [BR 2]

PO Chekalin's BWC shows that he stepped out of his RMP and immediately began chasing § 87(2)(b). § 87(2)(b) appears to be running with her cart. At 1:05, PO Chekalin places his right hand on § 87(2)(b) left shoulder. He does so for less than a second and tells § 87(2)(b) to stop repeatedly. He does not appear to apply much force. PO Chekalin tells § 87(2)(b) that he asked her multiple times to leave and that she cannot vend here. PO Chekalin asks her for ID and § 87(2)(b) provides her vendor's license. At 2:08 PO Chekalin tells § 87(2)(b) that if she does not provide her ID he will confiscate her license because he cannot confirm it is her license without an ID. § 87(2)(b) does not provide an ID. At 3:25, § 87(2)(b) speaks to a civilian on the street in Spanish. PO Chekalin asks if she is translating. PO Chekalin then reiterates that if § 87(2)(b) does not have another form of identification, he will take the license. § 87(2)(b) does not provide an ID and PO Chekalin walks away. He tells the civilian who was translating for § 87(2)(b) that § 87(2)(b) can pick up her license at the stationhouse. [BR 3]

PO Chekalin stated that on June 20, 2024, at approximately 5:40 PM, he noticed § 87(2)(b) vending in an area she was not allowed to, at Bowery Street and Stillwell Avenue in Brooklyn. PO Chekalin approached her and stopped her for vending and asked for identification. § 87(2)(b) only provided a vendor's license. PO Chekalin had seen § 87(2)(b) vending in that same area earlier that day and, exercising his discretion, told her to leave. When § 87(2)(b) provided her vending license, it appeared fraudulent to PO Chekalin because the Spanish word 'negro' was placed under 'eye color,' which PO Chekalin stated that it is uncommon on New York City issued identification. PO Chekalin never found out if the license was fraudulent. PO Chekalin confiscated the license because § 87(2)(b) could not provide ID. He stated that the patrol guide permitted him to confiscate all property, including the license when a vendor is vending in violation of the rules. He did not issue a summons because he was exercising his discretion.

PO Chekalin did not request a translator for § 87(2)(b) because she did not ask for one and he believed she was speaking and understanding English well. PO Chekalin placed his hand on § 87(2)(b)'s shoulder to stop her because she was walking away quickly. PO Chekalin did not offer § 87(2)(b) a business card at the end of the incident because she did not ask for one. He stated that this was a situation where he was required to offer one. [BR 4]

The NYC Department of Health and Mental Hygiene Mobile Food Vending Restricted Streets Guide states that vending is not permitted on Stillwell Avenue in Brooklyn between Neptune Avenue and Boardwalk which includes Bowery Street. [BR 9]

Patrol Guide, Procedure 218-39 states that when an officer stops a vendor in violation of vending regulations or laws, they should serve a summons and return the vendor's license to them. Any seized property can be picked up at the stationhouse. [BR 5]

Patrol Guide, Procedure 221-01 states that force may be used by a member of service when it is reasonable to prevent an individual's escape from custody. Whether the use of force is reasonable depends on, among other things, whether the subject is attempting to evade arrest by flight as well as the nature and severity of the crime/circumstances. [BR 6]

Patrol Guide, Procedure 212-90 states that when an officer is in the field, they must request an interpreter if there is doubt whether an individual is a limited English proficient person or if the individual requests an interpreter. If a bilingual member of the public is readily available, determine whether the individual is willing to interpret, and whether their use is appropriate. [BR 7]

Administrative Guide, Procedure 304-11 states that in the case of any law enforcement activity, including a stop, a business card is to be offered unless a summons is issued, or an arrest is made. [BR 8]

§ 87(2)(g)  
his  
BWC shows, was vending at that intersection. Therefore, it is recommended that **Allegation A** be closed as **Within NYPD Guidelines**.

§ 87(2)(g)  
PO Chekalin used force to stop § 87(2)(b) from evading him, § 87(2)(g)

used - briefly grabbing her shoulder § 87(2)(g)

Therefore, it is recommended that **Allegation B** be closed as **Within NYPD Guidelines**.

Patrol Guide Procedure 218-13 explicitly states that an officer must return a vendor's license to them when stopping them for a vending violation. PO Chekalin confiscated § 87(2)(b) vending license while stopping her for a vending violation § 87(2)(g)

it is recommended that **Allegation C** be closed as **Substantiated**.

PO Chekalin's BWC shows that § 87(2)(b) never asked for an interpreter. While she was speaking in Spanish to a bystander, she was also speaking to PO Chekalin in English. § 87(2)(g)

PO Chekalin's BWC shows that § 87(2)(b) was clearly more comfortable speaking Spanish; § 87(2)(g)

Therefore, it is recommended that **Allegation D** be closed as **Unfounded**.

BWC shows that PO Chekalin did not issue a summons or offer § 87(2)(b) a business card at the end of the stop. PO Chekalin confirmed this in his interview. § 87(2)(g)

is it recommended that **Allegation E** be closed as **Substantiated**.

#### Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party. [BR 10]
- PO Chekalin has been a member of service for six years and has been a subject in three CCRB complaints and seven allegations, none of which were substantiated. § 87(2)(g)

#### Mediation, Civil, and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- A FOIL request was made to the NYC Office of the Comptroller to determine if a notice of claim was filed regarding this incident. Results will be attached to the case file once they are received.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

#### RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad No.: 3

|               |                         |                              |                   |
|---------------|-------------------------|------------------------------|-------------------|
| Investigator: | <u>Arnav Madhiwalla</u> | <u>Inv. Arnav Madhiwalla</u> | <u>12/30/2024</u> |
|               | Signature               | Print Title & Name           | Date              |

|               |                        |                           |                   |
|---------------|------------------------|---------------------------|-------------------|
| Squad Leader: | <u>Rolando Vasquez</u> | <u>IM Rolando Vasquez</u> | <u>12/30/2024</u> |
|               | Signature              | Print Title & Name        | Date              |